

**Contract #: 250337**

**Entry Date:** 7/28/2025 10:48:37 AM

**Department:** Wyoming Department of Health, Aging Division

**Agency Contact:** Hood, Gary

**Phone:** 7776102

**Other Agency Contact:** Sharon Simpson  
777-7995

WYOMING ATTORNEY  
GENERAL'S OFFICE

AUG 05 2025

Chandler Pauling  
Assistant Attorney General

**Client Comments:**

**Contractor/Vendor Name:** City of Cheyenne

**Contract Title:** FFY26 Agreement

**Contract Type:** General Services -  
Federal Funds

**Contract Amount:** 65512.0000

**Contract Effective Date:**

**Contract Expiration Date:** 11/15/2026 12:00:00 AM

**Status:** Attorney Review Complete

**RETURN VIA:** Ink Signature - Pick-up

**Assigned Attorney:** Chandler Pauling

**AGREEMENT BETWEEN  
WYOMING DEPARTMENT OF HEALTH, AGING DIVISION  
AND  
CITY OF CHEYENNE TRANSIT PROGRAM**

1. **Parties.** The parties to this Agreement are Wyoming Department of Health, Aging Division (Agency), whose address is: 2300 Capitol Avenue, 4<sup>th</sup> Floor, Cheyenne, Wyoming 82002, and City of Cheyenne Transit Program (Subrecipient), whose address is: 322 West Lincolnway, Cheyenne, Wyoming, 82001.
2. **Purpose of Agreement.** The purpose of this Agreement is to set forth the terms and conditions by which the Subrecipient shall provide Title III-B Support Services of the Older Americans Act of 1965, as amended in 2020, to eligible individuals in the Agreement service area of Laramie County, Wyoming, as more specifically defined in Grant Application, which is incorporated into this Agreement by this reference. The purpose of the Title III programs is to provide services to vulnerable adults in order to promote independence, living with dignity, and maintenance of their health and fitness.
3. **Term of Agreement.** This Agreement is effective when all parties have executed it (Effective Date). The term of this Agreement is from October 1, 2025, or the Effective Date, whichever is later, through November 15, 2026. All services shall be completed during this term. The Period of Performance for Grant activities under this Agreement is from October 1, 2025, through September 30, 2026. Subrecipient must utilize all funds associated with this Agreement during the Period of Performance.
4. **Payment.**
  - A. The Agency agrees to pay the Subrecipient for the services described in Section 5 below, the services described in Attachment A, Statement of Work, which is attached to and incorporated into this Agreement by this reference, and the services described in Grant Application, which is incorporated into this Agreement by this reference, in accordance with payment limits based on the funding source. The payment limits for Title III funds are established as follows:
    - (i) Total payment under this Agreement shall not exceed sixty-five thousand, five hundred twelve dollars (\$65,512.00).
    - (ii) The payment of Title III Funds is subject to the following conditions:
      - a. The maximum amount of federal funds provided under CFDA#93.044 Title III-B Supportive Services shall not exceed sixty-one thousand, five hundred ninety dollars (\$61,590.00).
      - b. The maximum amount of state matching funds provided for Title III-B Supportive Services shall not exceed three thousand, nine hundred twenty-two dollars (\$3,922.00).

- c. The required minimum local match for Title III-B Supportive Services shall be no less than six thousand, nine hundred forty-six dollars (\$6,946.00).
- B. Payment shall be made within forty-five (45) days after submission of invoice pursuant to Wyo. Stat. § 16-6-602. Subrecipient shall submit invoices in sufficient detail to ensure that payments may be made in conformance with this Agreement.
- C. No payment shall be made for work performed outside the Period of Performance of this Agreement. Should the Subrecipient fail to perform in a manner consistent with the terms and conditions set forth in this Agreement, payment under this Agreement may be withheld until such time as the Subrecipient performs its duties and responsibilities to the satisfaction of Agency.
- D. Subrecipient shall submit monthly reporting of all program incomes and expenditures for payments and reimbursements for the corresponding fiscal year associated with the awarded grant. All documentation required by Attachment A is due to the Agency by the fifteenth (15<sup>th</sup>) day of each month. Additional supportive documents may be requested by Agency's Program Managers. These supportive documents may include, but are not limited to, Profit and Loss Statements, Payroll Summaries, Account Receivable and Payable Summaries, receipts, and invoices.
- E. By July 31st of each year that this Agreement is in effect, Subrecipient shall provide Agency with summary information on all expenses and anticipated expenses incurred between July 1st of the prior year through June 30th of the current year. Failure to provide Agency with this expense information by July 31st may result in the Agency failing to reimburse Subrecipient for any expenses that were incurred prior to June 30th, but not reported.
- F. Payment may be delayed for the following reasons:
  - (i) If the required documents are not completed correctly or are not received by the Agency by the due dates set forth in Attachment A;
  - (ii) If any additional information for financial program reports requested by the Agency is not received by the Agency by the due dates set forth in Attachment A;
  - (iii) If Subrecipient's responsibilities, as detailed in Section 5 of this Agreement, are not met; or
  - (iv) If the Community Living Section site review or Mon Ami reports indicate Aging Needs Evaluation Summaries (AGNES) for participants taking part in any of the programs covered by this Agreement (clients) are not current.
- G. The Agency shall be entitled to recover from Subrecipient any full or partial payment made under this Agreement in the event that:

- (i) Payments are used for purposes not authorized by this Agreement;
  - (ii) Payments are made for services Subrecipient is unable to provide;
  - (iii) Payment is made for services Subrecipient did not provide but was required to provide under this Agreement;
  - (iv) Payment is made for services that are performed outside the requirements under this Agreement;
  - (v) A balance is held by Subrecipient at the termination of this Agreement for services that have not been provided; or
  - (vi) Any other payment is later found by the Agency to be excessive or erroneous.
- H. Except as otherwise provided in this Agreement, the Subrecipient shall pay all costs and expenses, including travel, incurred by Subrecipient or on its behalf in connection with Subrecipient's performance and compliance with all of Subrecipient's obligations under this Agreement.

**5. Responsibilities of Subrecipient.** The Subrecipient agrees to:

- A. Provide the services and measurable deliverables on the expected dates during this Agreement, as described in Attachment A.
- B. Provide the services described in Grant Application, titled:
  - (i) Title III-B
- C. Utilize all required Agency forms and reporting mechanisms, and transmit forms and reports in the desired format in accordance with the specifications in Attachment A.
- D. Prior to providing services, complete all information forms, evaluation forms, and service plans, which shall be provided by the Agency, including client signature and date. Forms shall be kept on-site and available for review by the Agency.
- E. Refund to the Agency any amount paid to Subrecipient which exceeds the total amount of allowable expenditures made by Subrecipient during this Agreement no later than ten (10) days after receipt of an overpayment letter from the Agency.
- F. Minimize the time elapsed between the transfers of funds from the Agency to Subrecipient's payout of funds.

- G. Work cooperatively with other community entities to ensure quality services under this Agreement.
- H. Be accountable to the Agency for all project expenditures. Subrecipient shall ensure that all expenditures incurred by sub-subrecipients are in accordance with the fiscal policies established by the Agency and state and federal entities.
- I. Keep copies of all contracts with sub-subrecipients on-site and available for review by the Agency at any time. Subrecipient shall ensure that the Agency may conduct an on-site review of any and all sub-subrecipients.
- J. Participate and assist in any efforts undertaken by the Agency to evaluate the effectiveness, feasibility, and cost of the program. This includes periodic or as-needed site reviews conducted by the Agency.
- K. Resolve adverse Agency review(s) or audit findings in accordance with federal, state, and local statutes, rules and regulations, and applicable Agency rules, regulations, policies, and implementation plans.
- L. Have a written procedure for hearing appeals in place that allows applicants and recipients of Agency-funded services the opportunity to appeal the denial of services.
- M. Have a formalized Emergency Disaster Preparedness Plan for the place(s) of business where services are provided, which shall be reviewed and tested during the term of this Agreement.
- N. Assure that all Agency-required policies and procedures are reviewed and updated, as necessary, during the term of this Agreement.
- O. Educate all staff on the requirements for reporting to Adult Protective Services at least once during the term of this Agreement.
- P. Not engage, and not allow any staff member to engage, in any agreement or activity which would constitute a conflict of interest as related to this Agreement, and must have a written policy for conflicts of interests that prohibit the employment or appointment of Title III program decision-makers, staff, or volunteers with a conflict that cannot be adequately removed or remedied.
- Q. On a monthly basis, expend all program income funds prior to expending any federal, state, or local funds.

6. **Responsibilities of Agency.** The Agency agrees to:

- A. Pay Subrecipient in accordance with Section 4 above.

- B. Provide Subrecipient with technical assistance as needed.
- C. On a periodic or as-needed basis, conduct site reviews to evaluate Subrecipient, using criteria developed by the Agency. A site review may include, but is not limited to, personal visits to Subrecipient, subcontractor(s), or Subrecipient's clients.
- D. At least annually, provide the most current Agency Rules and Policy and Procedures, which are incorporated into this Agreement by this reference, to Subrecipient.

7. **Special Provisions.**

- A. **Assumption of Risk.** The Subrecipient shall assume the risk of any loss of state or federal funding, either administrative or program dollars, due to the Subrecipient's failure to comply with state or federal requirements. The Agency shall notify the Subrecipient of any state or federal determination of noncompliance.
- B. **Environmental Policy Acts.** Subrecipient agrees all activities under this Agreement will comply with the Clean Air Act, the Clean Water Act, the National Environmental Policy Act, and other related provisions of federal environmental protection laws, rules or regulations.
- C. **Human Trafficking.** As required by 22 U.S.C. § 7104(g) and 2 CFR Part 175, this Agreement may be terminated without penalty if a private entity that receives funds under this Agreement:
  - (i) Engages in severe forms of trafficking in persons during the period of time that the award is in effect;
  - (ii) Procures a commercial sex act during the period of time that the award is in effect; or
  - (iii) Uses forced labor in the performance of the award or subawards under the award.
- D. **Kickbacks.** Subrecipient certifies and warrants that no gratuities, kickbacks, or contingency fees were paid in connection with this Agreement, nor were any fees, commissions, gifts, or other considerations made contingent upon the award of this Agreement. If Subrecipient breaches or violates this warranty, Agency may, at its discretion, terminate this Agreement without liability to Agency, or deduct from the agreed upon price or consideration, or otherwise recover, the full amount of any commission, percentage, brokerage, or contingency fee.

- E. Limitations on Lobbying Activities.** By signing this Agreement, Subrecipient certifies and agrees that, in accordance with P.L. 101-121, payments made from a federal grant shall not be utilized by Subrecipient or its sub-subrecipient in connection with lobbying member(s) of Congress, or any federal agency in connection with the award of a federal grant, contract, cooperative agreement, or loan.
- F. Monitoring Activities.** Agency shall have the right to monitor all activities related to this Agreement that are performed by Subrecipient or its sub-subrecipients. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring experts and consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of Agreement related work.
- G. Nondiscrimination.** The Subrecipient shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans with Disabilities Act (ADA), 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto and shall not discriminate against any individual on the grounds of age, sex, color, race, religion, national origin, or disability in connection with the performance under this Agreement. Federal law requires the Subrecipient to include all relevant special provisions of this Agreement in every subcontract awarded over ten thousand dollars (\$10,000.00) so that such provisions are binding on each sub-subrecipient.
- H. No Finder's Fees:** No finder's fee, employment agency fee, or other such fee related to the procurement of this Agreement, shall be paid by either party.
- I. Publicity.** Any publicity given to the projects, programs, or services provided herein, including, but not limited to, notices, information, pamphlets, press releases, research, reports, signs, and similar public notices in whatever form, prepared by or for the Subrecipient and related to the services and work to be performed under this Agreement, shall identify the Agency as the sponsoring agency and shall not be released without prior written approval of Agency.
- (i)** All publications or promotional materials produced for public distribution with federal funds through this Agreement shall use, at minimum, the following disclaimer:

"This document was developed under Grant(s) from the U.S. Department of Health and Human Services, Administration on Community Living and the Wyoming Department of Health, Aging Division, Community Living Section. However, these contents do not necessarily represent the policy of the U.S. Department of Health and Human Services, Administration on Community Living, and the Wyoming Department of Health, Community Living

Section, and you should not assume endorsement by the Federal or State government."

- J. Suspension and Debarment.** By signing this Agreement, Subrecipient certifies that neither it nor its principals/agents are presently debarred, suspended, proposed for debarment, declared ineligible, or voluntarily excluded from participation in this transaction or from receiving federal financial or nonfinancial assistance, nor are any of the participants involved in execution of this Agreement suspended, debarred, or voluntarily excluded by any federal department or agency in accordance with Executive Order 12549 (Debarment and Suspension), or 2 CFR Part 180, or are on the debarred, or otherwise ineligible, vendors lists maintained by the federal government. Further, Subrecipient agrees to notify Agency by certified mail should it or any of its principals/agents become ineligible for payment, debarred, suspended, or voluntarily excluded from receiving federal funds during the term of the Agreement.
- K. Administration of Federal Funds.** Subrecipient agrees its use of the funds awarded herein is subject to the Uniform Administrative Requirements of 2 C.F.R. Part 200, *et seq.*; any additional requirements set forth by the federal funding agency; all applicable regulations published in the Code of Federal Regulations; and other program guidance as provided to it by Agency.
- L. Copyright License and Patent Rights.** Subrecipient acknowledges that federal grantor, the State of Wyoming, and Agency reserve a royalty-free, nonexclusive, unlimited, and irrevocable license to reproduce, publish, or otherwise use, and to authorize others to use, for federal and state government purposes: (1) the copyright in any work developed under this Agreement; and (2) any rights of copyright to which Subrecipient purchases ownership using funds awarded under this Agreement. Subrecipient must consult with Agency regarding any patent rights that arise from, or are purchased with, funds awarded under this Agreement.
- M. Federal Audit Requirements.** Subrecipient agrees that if it expends an aggregate amount in excess of the amount set forth in 2 CFR Part 200, Subpart F in federal awards during its fiscal year, it must undergo an organization-wide financial and compliance single audit. Subrecipient agrees to comply with the audit requirements of the U.S. General Accounting Office Government Auditing Standards and Audit Requirements of 2 CFR Part 200, Subpart F. If findings are made which cover any part of this Agreement, Subrecipient shall provide one (1) copy of the audit report to Agency and require the release of the audit report by its auditor be held until adjusting entries are disclosed and made to Agency's records.
- N. Non-Supplanting Certification.** Subrecipient hereby affirms that federal grant funds shall be used to supplement existing funds, and shall not replace (supplant) funds that have been appropriated for the same purpose. Subrecipient should be able to document that any reduction in non-federal resources occurred for reasons other than the receipt or expected receipt of federal funds under this Agreement.
- O. Program Income.** Subrecipient shall not deposit grant funds in an interest bearing

account without prior approval of Agency. Any income attributable to the grant funds distributed under this Agreement must be used to increase the scope of the program or returned to Agency.

- P. Applicability of Appendix II to 2 CFR Part 200.** This Agreement has been funded, in whole or in part, with an Award of Federal funds and is bound by the federal contract provisions required by the Uniform Guidance Appendix II of 2 CFR Part 200 (the Federal Contract Provisions), incorporated herein by this reference. In the event of a conflict between the Special Provisions section of this Agreement, or any attachments or exhibits incorporated herein, and the Federal Contract Provisions, the Federal Contract Provisions shall control. Failure to comply with the Federal Contract Provisions shall constitute an event of default under this Agreement. If such a default remains uncured five (5) calendar days following the termination of a thirty (30) day prior written notice period, the Agency may terminate this Agreement. This remedy will be in addition to any other remedy available to the State of Wyoming and the Agency under this Agreement, at law, or in equity.

**8. General Provisions.**

- A. Amendments.** Any changes, modifications, revisions, or amendments to this Agreement which are mutually agreed upon by the parties to this Agreement shall be incorporated by written instrument, executed by all parties to this Agreement.
- B. Applicable Law, Rules of Construction, and Venue.** The construction, interpretation, and enforcement of this Agreement shall be governed by the laws of the State of Wyoming, without regard to conflicts of law principles. The terms "hereof," "hereunder," "herein," and words of similar import, are intended to refer to this Agreement as a whole and not to any particular provision or part. The Courts of the State of Wyoming shall have jurisdiction over this Agreement and the parties. The venue shall be the First Judicial District, Laramie County, Wyoming.
- C. Assignment Prohibited and Agreement Shall Not be Used as Collateral.** Neither party shall assign or otherwise transfer any of the rights or delegate any of the duties set out in this Agreement without the prior written consent of the other party. The Subrecipient shall not use this Agreement, or any portion thereof, for collateral for any financial obligation without the prior written permission of the Agency.
- D. Audit and Access to Records.** The Agency and its representatives shall have access to any books, documents, papers, electronic data, and records of the Subrecipient which are pertinent to this Agreement. The Subrecipient shall immediately, upon receiving written instruction from the Agency, provide to any independent auditor or accountant all books, documents, papers, electronic data, and records of the Subrecipient which are pertinent to this Agreement. The Subrecipient shall cooperate fully with any such independent auditor or accountant during the entire course of any audit authorized by the Agency.

- E. Availability of Funds.** Each payment obligation of the Agency is conditioned upon the availability of government funds which are appropriated or allocated for the payment of this obligation and which may be limited for any reason including, but not limited to, congressional, legislative, gubernatorial, or administrative action. If funds are not allocated and available for continued performance of the Agreement, the Agreement may be terminated by the Agency at the end of the period for which the funds are available. The Agency shall notify the Subrecipient at the earliest possible time of the services which will or may be affected by a shortage of funds. No penalty shall accrue to the Agency in the event this provision is exercised, and the Agency shall not be obligated or liable for any future payments due or for any damages as a result of termination under this section.
- F. Award of Related Contracts.** The Agency may award supplemental or successor contracts for work related to this Agreement or may award contracts to other contractors for work related to this Agreement. The Subrecipient shall cooperate fully with other contractors and the Agency in all such cases.
- G. Certificate of Good Standing.** The Subrecipient shall provide to the Agency a Certificate of Good Standing from the Wyoming Secretary of State, or other proof that Subrecipient is authorized to conduct business in the State of Wyoming, if required, before performing work under this Agreement. Subrecipient shall ensure that annual filings and corporate taxes due and owing to the Secretary of State's office are up-to-date before signing this Agreement.
- H. Compliance with Laws.** The Subrecipient shall keep informed of and comply with all applicable federal, state, and local laws and regulations, and all federal grant requirements and executive orders in the performance of this Agreement.
- I. Confidentiality of Information.** All documents, data compilations, reports, computer programs, photographs, data, and other work provided to or produced by the Subrecipient in the performance of this Agreement shall be kept confidential by the Subrecipient unless written permission is granted by the Agency for its release. If and when Subrecipient receives a request for information subject to this Agreement, Subrecipient shall notify Agency within ten (10) days of such request and shall not release such information to a third party unless directed to do so by Agency.
- J. Entirety of Agreement.** This Agreement, consisting of thirteen (13) pages; and Attachment A, Statement of Work, consisting of two (2) pages and the Federal Contract Provisions, represent the entire and integrated Agreement between the parties and supersede all prior negotiations, representations, and agreements, whether written or oral. In the event of a conflict or inconsistency between the language of this Agreement and the language of any attachment or document incorporated by reference, the language of this Agreement shall control.
- K. Ethics.** Subrecipient shall keep informed of and comply with the Wyoming Ethics and Disclosure Act (Wyo. Stat. § 9-13-101, *et seq.*) and any and all ethical standards governing Subrecipient's profession.

- L. **Extensions.** Nothing in this Agreement shall be interpreted or deemed to create an expectation that this Agreement will be extended beyond the term described herein. Any extension of this Agreement shall be initiated by the Agency and shall be accomplished through a written amendment between the parties entered into before the expiration of the original Agreement or any valid amendment thereto, and shall be effective only after it is reduced to writing and executed by all parties to the Agreement.
- M. **Force Majeure.** Neither party shall be liable for failure to perform under this Agreement if such failure to perform arises out of causes beyond the control and without the fault or negligence of the nonperforming party. Such causes may include, but are not limited to, acts of God or the public enemy, fires, floods, epidemics, quarantine restrictions, freight embargoes, and unusually severe weather. This provision shall become effective only if the party failing to perform immediately notifies the other party of the extent and nature of the problem, limits delay in performance to that required by the event, and takes all reasonable steps to minimize delays.
- N. **Indemnification.** The Subrecipient shall release, indemnify, and hold harmless the State, the Agency, and their officers, agents, and employees from any and all claims, suits, liabilities, court awards, damages, costs, attorneys' fees, and expenses arising out of Subrecipient's failure to perform any of Subrecipient's duties and obligations hereunder or in connection with the negligent performance of Subrecipient's duties or obligations, including, but not limited to, any claims, suits, liabilities, court awards, damages, costs, attorneys' fees, and expenses arising out of Subrecipient's negligence or other tortious conduct.
- O. **Independent Contractor.** The Subrecipient shall function as an independent contractor for the purposes of this Agreement and shall not be considered an employee of the State of Wyoming for any purpose. Consistent with the express terms of this Agreement, the Subrecipient shall be free from control or direction over the details of the performance of services under this Agreement. The Subrecipient shall assume sole responsibility for any debts or liabilities that may be incurred by the Subrecipient in fulfilling the terms of this Agreement and shall be solely responsible for the payment of all federal, state, and local taxes which may accrue because of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Subrecipient or its agents or employees to act as an agent or representative for or on behalf of the State of Wyoming or the Agency or to incur any obligation of any kind on behalf of the State of Wyoming or the Agency. The Subrecipient agrees that no health or hospitalization benefits, workers' compensation, unemployment insurance, or similar benefits available to State of Wyoming employees will inure to the benefit of the Subrecipient or the Subrecipient's agents or employees as a result of this Agreement.

- P. Notices.** All notices arising out of, or from, the provisions of this Agreement shall be in writing either by regular mail or delivery in person at the addresses provided under this Agreement.
- Q. Notice of Sale or Transfer.** The Subrecipient shall provide the Agency with notice of any sale, transfer, merger, or consolidation of the assets of the Subrecipient. Such notice shall be provided in accordance with the notices provision of this Agreement and, when possible and lawful, in advance of the transaction. If the Agency determines that the sale, transfer, merger, or consolidation is not consistent with the continued satisfactory performance of the Subrecipient's obligations under this Agreement, then the Agency may, at its discretion, terminate or renegotiate the Agreement.
- R. Ownership and Return of Documents and Information.** Agency is the official custodian and owns all documents, data compilations, reports, computer programs, photographs, data, and other work provided to or produced by the Subrecipient in the performance of this Agreement. Upon termination of services, for any reason, Subrecipient agrees to return all such original and derivative information and documents to the Agency in a useable format. In the case of electronic transmission, such transmission shall be secured. The return of information by any other means shall be by a parcel service that utilizes tracking numbers. Upon Agency's verified receipt of such information, Subrecipient agrees to physically and electronically destroy any residual Agency-owned data, regardless of format, and any other storage media or areas containing such information. Subrecipient agrees to provide written notice to Agency confirming the destruction of any such residual Agency-owned data.
- S. Patent or Copyright Protection.** The Subrecipient recognizes that certain proprietary matters or techniques may be subject to patent, trademark, copyright, license, or other similar restrictions, and warrants that no work performed by the Subrecipient or its sub-subrecipients will violate any such restriction. The Subrecipient shall defend and indemnify the Agency for any infringement or alleged infringement of such patent, trademark, copyright, license, or other restrictions.
- T. Prior Approval.** This Agreement shall not be binding upon either party, no services shall be performed, and the Wyoming State Auditor shall not draw warrants for payment, until this Agreement has been fully executed, approved as to form by the Office of the Attorney General, filed with and approved by A&I Procurement, and approved by the Governor of the State of Wyoming, or his designee, if required by Wyo. Stat. § 9-2-3204(b)(iv).
- U. Severability.** Should any portion of this Agreement be judicially determined to be illegal or unenforceable, the remainder of the Agreement shall continue in full force and effect, and the parties may renegotiate the terms affected by the severance.
- V. Sovereign Immunity and Limitations.** Pursuant to Wyo. Stat. § 1-39-104(a), the State of Wyoming and Agency expressly reserve sovereign immunity by entering

into this Agreement and specifically retain all immunities and defenses available to them as sovereigns. The parties acknowledge that the State of Wyoming has sovereign immunity and only the Wyoming Legislature has the power to waive sovereign immunity. Designations of venue, choice of law, enforcement actions, and similar provisions shall not be construed as a waiver of sovereign immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to sovereign immunity shall be construed in favor of sovereign immunity.

- W. Taxes.** The Subrecipient shall pay all taxes and other such amounts required by federal, state, and local law, including, but not limited to, federal and social security taxes, workers' compensation, unemployment insurance, and sales taxes.
- X. Termination of Agreement.** This Agreement may be terminated, without cause, by the Agency upon thirty (30) days written notice. This Agreement may be terminated by the Agency immediately for cause if the Subrecipient fails to perform in accordance with the terms of this Agreement. If at any time during the performance of this Agreement, in the opinion of the Agency, the work is not progressing satisfactorily or within the terms of this Agreement, then, at the discretion of the Agency and after written notice to the Subrecipient, the Agency may terminate this Agreement or any part of it. As of the termination date, the Subrecipient will be entitled to a pro rata payment for all work accomplished and accepted by the Agency; however, the Subrecipient shall be liable to the Agency for the entire cost of replacement services for the duration of the Agreement term.
- Y. Third-Party Beneficiary Rights.** The parties do not intend to create in any other individual or entity the status of third-party beneficiary, and this Agreement shall not be construed so as to create such status. The rights, duties, and obligations contained in this Agreement shall operate only between the parties to this Agreement and shall inure solely to the benefit of the parties to this Agreement. The provisions of this Agreement are intended only to assist the parties in determining and performing their obligations under this Agreement.
- Z. Time is of the Essence.** Time is of the essence in all provisions of this Agreement.
- AA. Titles Not Controlling.** Titles of sections and subsections are for reference only and shall not be used to construe the language in this Agreement.
- BB. Waiver.** The waiver of any breach of any term or condition in this Agreement shall not be deemed a waiver of any prior or subsequent breach. Failure to object to a breach shall not constitute a waiver.
- CC. Counterparts.** This Agreement may be executed in counterparts. Each counterpart, when executed and delivered, shall be deemed an original and all counterparts together shall constitute one and the same Agreement. Delivery by the Subrecipient of an originally signed counterpart of this Agreement by facsimile or PDF shall be followed up immediately by delivery of the originally signed counterpart to the Agency.

9. **Signatures.** The parties to this Agreement, either personally or through their duly authorized representatives, have executed this Agreement on the dates set out below, and certify that they have read, understood, and agreed to the terms and conditions of this Agreement.

The Effective Date of this Agreement is the date of the signature last affixed to this page.

**AGENCY:**

\_\_\_\_\_  
Stefan Johansson, Director  
Wyoming Department of Health

\_\_\_\_\_  
Date

\_\_\_\_\_  
Jeff Clark, Manager, Community Living Section  
Aging Division

\_\_\_\_\_  
Date

**SUBRECIPIENT:**

City of Cheyenne Transit Program

\_\_\_\_\_  
Director Signature

\_\_\_\_\_  
Date

\_\_\_\_\_  
Print Name and Title of Director

\_\_\_\_\_  
Date

**ATTORNEY GENERAL'S OFFICE: APPROVAL AS TO FORM**

 #250337  
\_\_\_\_\_  
Chandler Pauling, Assistant Attorney General

08.05.25  
\_\_\_\_\_  
Date

## Attachment A Statement of Work

### General Description

This document is a Statement of Work (SOW) to identify and describe the timetable for payments, milestones and reports for the following Title III programs of the Older Americans Act of 1965, as amended in 2020, and specified general funds grant and Agreement for the Federal Fiscal Year 2026:

#### ***Title III-B Support Services***

*The program is to provide services to support and enable state and community agencies serving older individuals, sixty (60) years old or older, to remain physically, mentally, and socially active through services as detailed in the Grant Application - Title III-B.*

The service area is Laramie County, Wyoming.

### Timeline and Deliverables

The service deliverables include all services detailed in Grant Application that Subrecipient will provide to its clients. Each month, Subrecipient shall submit the following to the Community Living Section (CLS), or the relevant CLS Program Manager, by the fifteenth (15<sup>th</sup>) day of the month:

- I. All client service data for services rendered in the prior month. Subrecipients shall submit the client service data into the Mon Ami System. Subrecipient shall review and comply with the Mon Ami Rules of Behavior, which are incorporated into the Agreement by this reference, and shall cause all staff end-users to review and comply with the Mon Ami Rules of Behavior.
- II. The monthly invoice for services rendered in the prior month and with the relevant report, if applicable, attached thereto;
- III. Supporting profit and loss statement.

Subrecipients are responsible to:

- a. Acknowledge Mon Ami Rules of Behavior at least monthly.
- b. Notify the Community Living Section Database Administrator and/or designee of personnel changes.
- c. Oversee data within their purview.
- d. Take precautions against unauthorized intrusion.
- e. Report misuse, breaches, and suspected incidents.
- f. Prevent unauthorized use of and access to System resources.
- g. Maintain control of their identity.
- h. Protect confidential information in their care.
- i. Prevent unauthorized use of and access to System resources.

After the grant has been approved by the Agency Program Manager, any revision to budget /expenditures (Personnel, Travel, Equipment, Consumable Supplies or Other) that exceeds ten percent (10%) of the entire grant amount (i.e. Entire Grant Amount – \$30,000 x 10% = \$3,000), must be submitted in writing to the Agency Program Manager. Revision requests must be made by August 15, 2026. Once approved, the

Subrecipient shall submit the categories budget sheets to the Agency Program Manager. The approved changes shall become part of the approved grant.

| <b>Timetable of Payments and Reporting Requirements</b> |                                                                                                                                                                                                     |                        |                    |                                |
|---------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------|--------------------|--------------------------------|
| <b>Task</b>                                             | <b>Description – Grant Payment and Reporting Schedule</b>                                                                                                                                           | <b>Service Dates</b>   | <b>Due Date</b>    | <b>Payment to Subrecipient</b> |
| 1                                                       | Grant payment made per Agreement.                                                                                                                                                                   | October 1 - 31, 2025   | November 15, 2025  | Variable                       |
| 2                                                       | Grant payment made per Agreement.                                                                                                                                                                   | November 1 - 30, 2025  | December 15, 2025  | Variable                       |
| 3                                                       | Grant payment made and quarterly reports per Agreement.                                                                                                                                             | December 1 - 31, 2025  | January 15, 2026   | Variable                       |
| 4                                                       | Grant payment made per Agreement.                                                                                                                                                                   | January 1 - 31, 2026   | February 15, 2026  | Variable                       |
| 5                                                       | Grant payment made per Agreement.                                                                                                                                                                   | February 1 - 28, 2026  | March 15, 2026     | Variable                       |
| 6                                                       | Grant payment made and quarterly reports per Agreement.                                                                                                                                             | March 1 - 31, 2026     | April 15, 2026     | Variable                       |
| 7                                                       | Grant payment made per Agreement.                                                                                                                                                                   | April 1 - 30, 2026     | May 15, 2026       | Variable                       |
| 8                                                       | Grant payment made per Agreement.                                                                                                                                                                   | May 1 - 31, 2026       | June 15, 2026      | Variable                       |
| 9                                                       | Grant payment made and quarterly reports per Agreement.                                                                                                                                             | June 1 - 30, 2026      | July 15, 2026      | Variable                       |
| 10                                                      | Grant payment made per Agreement.                                                                                                                                                                   | July 1 - 31, 2026      | August 15, 2026    | Variable                       |
| 11                                                      | Grant payment made per Agreement.                                                                                                                                                                   | August 1 - 31, 2026    | September 15, 2026 | Variable                       |
| 12                                                      | Grant payment made and quarterly reports per Agreement.                                                                                                                                             | September 1 - 30, 2026 | October 15, 2026   | Variable                       |
| 13                                                      | Subrecipient submits final grant close out financials, applicable year-end program reports, and client information for the grant year. All final payments or paybacks to be completed by this date. |                        | November 15, 2026  | Variable                       |

| <b>Program</b>                                                        | <b>Federal Funding</b> | <b>State Funding</b> | <b>Local Matching Funds</b> |
|-----------------------------------------------------------------------|------------------------|----------------------|-----------------------------|
| <b>TITLE III B SUPPORT SERVICES</b>                                   | <b>\$61,590.00</b>     | <b>\$3,922.00</b>    | <b>\$6,946.00</b>           |
| <b>TOTAL FEDERAL FUNDS</b>                                            | <b>\$61,590.00</b>     |                      |                             |
| <b>TOTAL STATE FUNDS</b>                                              |                        | <b>\$3,922.00</b>    |                             |
| <b>TOTAL GRANT AGREEMENT, STATE AND FEDERAL, AMOUNT NOT TO EXCEED</b> | <b>\$65,512.00</b>     |                      |                             |